

PROVISION OF PROFESSIONAL REFERENCES OR ASSISTANCE

Loudoun County Public Schools (LCPS) has many high-performing team members who may choose at various times to grow their careers within LCPS or via other opportunities. As an organization, LCPS seeks to hire, cultivate, promote and support high-performing team members. This may involve the provision of professional references.

Professional references are often requested by employees or former employees for employment, promotion, college or university program admission, or acceptance into other professional programs.

Professional references provided by a LCPS employee are a reflection of their professional reputation and that of LCPS.

Any LCPS employee violating this policy may be disciplined up to and including termination.

A. General Reference Requests.

1. Definition. For the purposes of this policy, a professional reference request is one that seeks information concerning an employee's qualifications, work ethic, job performance or eligibility for rehire.

2. Principals and/or direct supervisors are encouraged to take the time to provide references for high-performing employees. For the purposes of this policy, direct supervisors are those who evaluate the employee.

3. Principals and/or direct supervisors may choose to provide a reference for an employee if Section B does not apply to the employee.

4. It is acceptable for a principal and/or direct supervisor to communicate to an employee that they are not comfortable serving as a reference, provided the withholding of a reference is not being done for an unlawful reason or for reasons that violate Loudoun County School Board policies.

5. Any LCPS employee offering a reference for a current or former LCPS employee should ensure that they do not make any statements about the employee that they know to be false.

6. Care should be taken to ensure references do not disclose confidential personal information, or contain information related to race, ancestry, color, sex, pregnancy, childbirth or related medical conditions, marital status, age, religion, national origin, disability, genetic information or any leave protected by federal or Virginia law.

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B. Reference/Assistance Requests: Sexual Misconduct or Founded Cases of Child Abuse or Neglect or Ongoing Investigations of the Same.

1. Neither LCPS nor any employee, contractor, or agent of LCPS shall assist an LCPS employee, contractor, or agent in obtaining a new job, apart from the routine transmission of administrative and personnel files, if such individual knows or has probable cause to believe that the employee, contractor, or agent engaged in sexual misconduct regarding a minor or student in violation of law or is the subject of an on-going investigation of sexual misconduct in violation of law.

2. Neither LCPS nor any employee of LCPS shall assist an LCPS employee in obtaining a new job, apart from the routine transmission of administrative and personnel files, if such individual knows or has probable cause to believe that the employee is the subject of a founded case of child abuse or neglect.

3. A vendor contract clause containing the prohibition in B.1 shall be required in every LCPS contract and in all subcontracts, if any.

4. Any contractor or contractor employee found violating B.1 of this policy may be prohibited from being awarded or working on future LCPS contracts and a contractor employee may be removed immediately from working on any current LCPS contract.

5. Any employee, contractor, or agent who receives a reference or assistance request covered by Section B.1. shall immediately notify the appropriate Department of Human Resources and Talent Development (HRTD) director of the request. The HRTD Director shall not assist the individual in obtaining new employment apart from the routine transmission of administrative and personnel files.

Adopted: 6/26/18

Revised: 12/10/24

Legal Refs: Va. Code §§ [22.1-78](#), [22.1-79.8](#), and [8.01-46.1](#); [20 U.S.C.1681](#), et seq; [20 U.S.C. § 7926](#).